
Decision of the National Commission sitting in a restricted formation on the outcome of investigation no. [...] conducted with the Ministry [...] at the site of the High School [...]

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Deliberation no. 2FR/2025 of March 26, 2025

The National Commission for Data Protection sitting in a restricted formation, composed of Ms. Tine A. Larsen, President, Mr. Marc Lemmer, Commissioner, and Mr. Marc Hemmerling, Substitute Member;

Having regard to Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC;

Having regard to the law of August 1, 2018, organizing the National Commission for Data Protection;

Having regard to the internal regulations of the National Commission for Data Protection adopted by decision no. 07AD/2024 dated February 23, 2024, in particular Article 10, paragraph 2;

Having regard to the regulation of the National Commission for Data Protection concerning the investigation procedure adopted by decision no. 08AD/2024 dated February 23, 2024, in particular Article 9;

Considering the following:

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I. Facts and Procedure

1.

During its deliberation session on October 21, 2022, the National Commission for Data Protection (hereinafter: the “CNPD” or the “National Commission”) sitting in plenary formation decided to open an investigation with the Ministry [...] at the site of the High School [...] based on Article 38 of the law of August 1, 2018, organizing the National Commission for Data Protection and the general regime on data protection (hereinafter: the “law of August 1, 2018”) and to appoint Mr. Alain Herrmann as the head of the investigation.

2.

The said decision specified that the investigation conducted by the CNPD aimed to verify the application and compliance with Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (hereinafter: the “GDPR”) and the law of August 1, 2018, and “the compliance of any surveillance measures implemented by the Ministry [...] and the management of the said establishment, if applicable, through a video surveillance system.”¹

3.

The Ministry [...] located at [...], [...], is a governmental administration [...] (hereinafter: the “Ministry”).

4.

The High School [...] located at [...], [...] (hereinafter: the “High School”), is an educational institution administered in the form of a state service with separate management², lacking legal personality, but benefiting from administrative and financial autonomy under the supervision of the Ministry [...].

5.

On December 15, 2022, agents of the CNPD conducted an on-site visit at the High School

(hereinafter: the “on-site visit”). This moment is subsequently referenced in this decision as the “start of the investigation.”

1 Deliberation no. [...] of October 21, 2022, of the National Commission for Data Protection regarding the opening of an investigation mission with the Ministry [...] at the site of the High School [...].

2 According to Article 29 of the law of April 26, 2024, concerning the budget of state revenues and expenditures for the fiscal year 2024, “[...]”.

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6. By email dated December 20, 2022, the High School provided the CNPD with additional information requested during the on-site visit.

7. The report no. [...] relating to the on-site visit conducted on December 15, 2022, at the site of the High School (hereinafter: the “report”) prepared by the agents of the CNPD was sent to the controlled party by mail dated December 22, 2022, along with a request for additional information.

8. It follows from this report that:

- The video surveillance system within the High School premises consists of 12 cameras, including 8 fixed cameras and 4 dome-type cameras (hereinafter: the “video surveillance system”)³;
- The video surveillance system operates continuously (24 hours a day) and has night vision but only records when motion is detected in its field of view⁴;
- The images from the video surveillance system can be viewed in real-time by the 6 members of the technical team of the High School “from the computers installed in booths A and B.” However, these individuals do not have access to the images from the aforementioned system. Access to the recorded images from said system is exclusively reserved for the principal and the deputy principal of the high school in case of suspicions or issues⁵. The controlled parties did not make any observations regarding the report.

9. On January 26, 2023, the CNPD sent a supplementary questionnaire to the Ministry.

10. Following several reminders regarding the response to the supplementary questionnaire⁶ [...] the Ministry finally responded on the same day⁷.

3 Report, Finding 1.

4 Report, Finding 9.

5 Report, Finding 13.

6 [...].

7 Communication of grievances, Document no. 1.

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11. On July 27, 2023, additional checks were carried out at the site of the High School by the agents of the CNPD (hereinafter: “the additional checks”).

12. The report no. [...] relating to the on-site visit conducted on July 27, 2023, at the site of the High School (hereinafter: the “second report”) prepared by the agents of the CNPD was sent to the controlled party by mail dated July 31, 2023. On July 28, 2023, a request for additional information was sent to the High School.

13. It follows from the second report that:

- The security system for the access door to building A is protected by a locked door. The security system for the access door to building B is protected by an access badge system⁸;
- Access to the technical room housing the hard drive of the recordings from the video surveillance system in the basement of building B is protected by a locked door⁹.

14. On September 5, 2023, the High School made observations regarding the second report and responded on September 21 to the request for additional information.

15. At the end of its investigation, the head of the inquiry notified the Ministry on June 6, 2024, of a communication of grievances (hereinafter: the "initial communication of grievances") detailing the breaches he believed were constituted in this case concerning the requirements prescribed by Article 5.2 of the GDPR (principle of accountability), Article 13.1 and 13.2 of the GDPR (right to information), Article 5.1.a) of the GDPR (principle of transparency), Article 25.2 of the GDPR (obligation to minimize the data processed in relation to the intended purpose), Article 25.2 of the GDPR (principle of data retention limitation), and Article 32.1 of the GDPR (obligation of security of processing). The head of the inquiry proposed to the National Commission sitting in a restricted formation (hereinafter: the "Restricted Formation") to adopt five different corrective measures. The opportunity to submit written observations on the communication of grievances was offered to the Ministry.

8 Second report, point G.

9 Second report, point G.

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16. By letter dated July 26, 2024, the Ministry submitted its observations regarding the communication of the initial grievances, contesting its status as the data controller.

17. On August 1, 2024, the head of the investigation adopted the Ministry's interpretation regarding the requalification of the data controller. Thus, a second communication of grievances dated August 8, 2024, was sent to the High School (hereinafter: "the communication of grievances"). The opportunity to submit written observations on the communication of grievances was offered to the High School, which did not provide any observations to the head of the investigation.

18. The head of the investigation forwarded the file to the Restricted Formation for a decision regarding the outcome of the investigation.

19. The president of the Restricted Formation informed the parties concerned by letter dated October 2, 2024, that the case would be listed for the session of the Restricted Formation on November 26, 2024, and that they were offered the opportunity to be heard.

20. The parties concerned indicated that they would not attend this invitation from the Restricted Formation.

21. During this session, the head of the investigation presented his oral observations in support of his written observations and answered questions posed by the Restricted Formation.

22. The decision of the Restricted Formation on the outcome of the investigation will be based on:

- the processing carried out by the parties concerned as taken into account by the head of the investigation in his communication of grievances; and
- the applicable legal and regulatory provisions.

10 Communication of grievances, Document no. 77.

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II. In law

II.1. On the grounds for the decision

A. On the status of the parties concerned and the determination of the data controller

1. On the principles

23. In accordance with Article 4.7 of the GDPR, the data controller is "the natural or legal person, public authority, service, or other body which, alone or jointly with others, determines the purposes and

means of the processing [...]".

24. The European Data Protection Board (hereinafter: "EDPB"), in its guidelines 07/2020 on the concepts of data controller and processor, specifies that "in principle, there is no limit to the type of entity that may assume the role of data controller."

25. The EDPB further states that the concept of data controller is a functional concept and that "it is therefore based on a factual rather than formal analysis. [...] In most cases, the 'body that determines' can be easily and clearly identified by reference to certain legal and/or factual circumstances from which 'influence' can normally be inferred, unless other elements indicate otherwise."

26. Finally, the EDPB specifies that "[i]n the absence of control arising from legal provisions, the designation of a party as data controller must be established based on an assessment of the factual circumstances in which the processing takes place. All relevant factual circumstances must be taken into account to determine whether a given entity exerts a determining influence on the processing of the personal data in question."

11 EDPB, Guidelines 07/2020 on the concepts of data controller and processor in the GDPR, Version 2.0, adopted on July 7, 2021, page 3.

12 EDPB, Guidelines 07/2020 on the concepts of data controller and processor in the GDPR, Version 2.0, adopted on July 7, 2021, point 21, page 12.

13 EDPB, Guidelines 07/2020 on the concepts of data controller and processor in the GDPR, Version 2.0, adopted on July 7, 2021, point 25, page 13.

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2. In this case

27. During the on-site visit, the High School stated that "the Ministry was not involved in the establishment of the video surveillance system and that the decision was made by the management of the High School in its capacity as head of the institution, the latter enjoying a certain autonomy in implementing the means deemed appropriate to fulfill its various missions"¹⁴.

28. Furthermore, the High School also stated during the on-site visit that "the management of the High School chose the service provider responsible for installing the video surveillance system, validated the service provider's quote, and financed the system with the High School's own budget (DOCUMENT 01, cf. Q4, Q8, Q16, p.6-8). The Director of the High School further specified that the management of the High School, either alone or in consultation with the service provider, decided on the operational modalities of the system, the installation location, the field of vision, the operating hours, and the settings of the cameras, as well as the duration of data retention collected using the cameras (DOCUMENT 01, cf. Q9-Q14, p. 6-7)"¹⁵.

29. The Restricted Formation considers that the High School should be classified as the "data controller" within the meaning of Article 4.7 of the GDPR, as it follows from the above that it determined the means and purposes of the processing of personal data resulting from the video surveillance system.

B. On the breach related to the principle of accountability (Article 5.2 of the GDPR)

1. On the principles

30. Article 5.2 of the GDPR states that "[t]he data controller is responsible for compliance with paragraph 1 and is able to demonstrate that it is complied with (accountability)." Paragraph 1 of this article states in particular that "[p]ersonal data must be: a) processed lawfully, fairly, and transparently in relation to the data subject (lawfulness, fairness, transparency)."

31. Recital 74 of the GDPR notably states that "it is particularly important that the data controller is required to implement appropriate and effective measures and is able to demonstrate compliance of processing activities with this Regulation, including the effectiveness of the measures."

32. Furthermore, the Court of Justice of the European Union (hereinafter: the "CJEU") specifies that "[u]nder paragraph 2 of Article 5 of the GDPR, the data controller, in accordance with the principle of

'accountability' set out in that provision, is responsible for compliance with paragraph 1 of this article and must be able to demonstrate that it complies with each of the principles set out in that paragraph 1, such proof being thus placed on its shoulders"¹⁶.

33. Article 6.1, f) of the GDPR states that "processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, unless the interests or fundamental rights and freedoms of the data subject which require protection of personal data prevail, in particular when the data subject is a child."

34. Recital (47) of the GDPR states in particular that "the legitimate interests of a data controller (...) may constitute a legal basis for processing, unless the interests or fundamental rights and freedoms of the data subject prevail, taking into account the reasonable expectations of the data subjects based on their relationship with the data controller."

35. Thus, as noted by the CJEU, the provision of Article 6.1, f) of the GDPR "provides for three cumulative conditions for the processing of personal data it addresses to be lawful, namely, first, the pursuit of a legitimate interest by the data controller or by a third party, second, the necessity of processing personal data for the realization of the legitimate interest pursued, and third, the condition that the interests or the freedoms and fundamental rights of the data subject concerning the protection of data do not prevail over the legitimate interest of the data controller or a third party"¹⁷.

¹⁶ Judgment of the CJEU of May 4, 2023, *UZ v. Bundesrepublik Deutschland*, C-60/22, ECLI:EU:C:2023:373, paragraphs 53 and 54.

¹⁷ Judgment of the CJEU of June 17, 2021, *M.I.C.M.*, C-597/19, EU:C:2021:492, paragraph 106 and cited case law, Judgment of the CJEU of July 4, 2023, *Meta v. Bundeskartellamt*, C-252/21, ECLI:EU:C:2023:357, paragraph 106.

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36. Therefore, under the principle of accountability, the data controller relying on the legal basis of legitimate interest must be able to demonstrate that the aforementioned cumulative conditions are met. Thus, it is particularly incumbent upon them to show that the balancing test has been carried out appropriately and that the interests or fundamental rights and freedoms of the data subject do not outweigh the legitimate interests they pursue.

2. In this case

37. During the on-site visit, the High School informed the agents of the CNPD that the legal basis for the processing implemented by the video surveillance system is legitimate interest, namely access control and property protection in order to detect break-ins, theft, and/or vandalism¹⁸.

38. It also indicated that no balancing between its legitimate interests and the interests or fundamental rights and freedoms of the data subjects had been carried out¹⁹. By acting in this manner, the High School failed to meet one of the three cumulative conditions set out in point 35 above, namely to conduct the balancing test and demonstrate that the interests or fundamental rights and freedoms of the data subject do not outweigh the legitimate interests it pursues. The High School was therefore unable to provide evidence that this condition was met. However, this burden of proof rests with it under Article 5.2 of the GDPR.

39. Consequently, the Restricted Formation agrees with the opinion of the head of investigation and considers that non-compliance with Article 5.2 of the GDPR was established on the day of the on-site visit by the agents of the CNPD.

18 Minutes, Finding 6.

19 Minutes, Finding 6.

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C. On the breach related to the principle of transparency (Article 5.1.a) of the GDPR) and the information obligations (Articles 13.1 and 13.2 of the GDPR)

1. On the principles

40. The communication to data subjects of information regarding the processing of their data is an essential element in the context of compliance with the general obligations of transparency under the GDPR.

41. Indeed, under Article 5.1.a) of the GDPR, personal data must be processed, among other things, in a transparent manner with respect to the data subjects (principle of transparency). Article 12 of the GDPR provides that “the data controller shall take appropriate measures to provide any information referred to in Articles 13 and 14 (...) regarding the processing to the data subject in a concise, transparent, comprehensible, and easily accessible manner.”

42. Furthermore, when the data subject requests it, the information may be provided orally²⁰. The guidelines of the Article 29 Working Party on transparency under Regulation (EU) 2016/679, adopted on April 11, 2018, state that “[t]he data controller should (...) ensure that a written record is kept, and ensure that it is able to prove it (for the purposes of compliance with the accountability requirement), of: i) the request for information made orally, ii) the method by which the identity of the data subject was verified (...) and iii) that the information was provided to the data subject”²¹.

43. Article 13 of the GDPR provides as follows:

“1. When personal data relating to a data subject are collected from that data subject, the data controller shall provide, at the time when the data in question are obtained, all of the following information:

a) the identity and contact details of the data controller and, where applicable, of the representative of the data controller;

²⁰ Article 12.1 of the GDPR.

²¹ Guidelines of the Article 29 Working Party on transparency under Regulation (EU) 2016/679, adopted on April 11, 2018, point 21.

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b) where applicable, the contact details of the data protection officer;

c) the purposes of the processing for which the personal data are intended as well as the legal basis for the processing;

d) where the processing is based on Article 6(1)(f), the legitimate interests pursued by the data controller or by a third party;

e) the recipients or categories of recipients of the personal data, if any; and

f) where applicable, the fact that the data controller intends to transfer personal data to a third country or to an international organization, and the existence or absence of an adequacy decision issued by the Commission or, in the case of transfers referred to in Articles 46 or 47, or Article 49(1), second subparagraph, the reference to appropriate or suitable safeguards and the means of obtaining a copy or the place where they have been made available;

2. In addition to the information referred to in paragraph 1, the data controller provides the data subject, at the time when the personal data are obtained, with the following additional information

necessary to ensure fair and transparent processing:

- a) the retention period for the personal data or, when that is not possible, the criteria used to determine that period;
- b) the existence of the right to request from the data controller access to personal data, the rectification or erasure of such data, or a restriction of processing concerning the data subject, or the right to object to processing and the right to data portability;
- c) where the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of processing based on consent before its withdrawal;
- d) the right to lodge a complaint with a supervisory authority;

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- e) information on whether the requirement to provide personal data has a statutory or contractual nature or if it is a condition for entering into a contract and whether the data subject is obliged to provide the personal data, as well as on the possible consequences of not providing such data;
 - f) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in such cases, useful information regarding the underlying logic, as well as the significance and the anticipated consequences of such processing for the data subject.
3. When intending to carry out further processing of personal data for a purpose other than that for which the personal data were collected, the data controller shall provide the data subject with information about that other purpose and any other relevant information referred to in paragraph 2 beforehand.
4. Paragraphs 1, 2, and 3 do not apply when, and to the extent that, the data subject already has that information.
44. Finally, in its guidelines 3/2019 on the processing of personal data by video devices, the EDPB provides clarifications regarding the means of communicating the aforementioned information. It specifies that "in light of the volume of information to be provided to the data subject, the data controller may adopt a layered approach, whereby it chooses to use multiple methods to ensure transparency (WP 260, paragraph 35, 'P 89, paragraph 22). Regarding video surveillance, the most important information should be displayed on the warning sign as such (first level), while other mandatory details can be provided by other means (second level)."

22 Guidelines 3/2019 of the EDPB on the processing of personal data for video devices, adopted on January 29, 2020.

23 Guidelines 3/2019 of the EDPB on the processing of personal data for video devices, adopted on January 29, 2020, point 11.

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2. In this case

45. During the on-site visit, the agents of the CNPD noted that the only signage displayed at the entrances of the Lycée²⁴ regarding video surveillance consisted of three panels featuring a camera pictogram, as well as the mention "area under video surveillance," without any further information²⁵.
46. However, the Restricted Formation recalls that the CNPD's guidelines on video surveillance state that "[i]n order to inform the individuals concerned of the presence of a video surveillance system, the CNPD recommends communicating, for example via display panels, a first level of information containing: the identity and contact details of the data controller; the purpose(s) of the processing; the

existence of the rights of the individuals concerned; the mention that more comprehensive information exists (second level of information) and the means to access it (for example, a hyperlink directing to the website of the data controller, the use of a QR code, a phone number to call, or the indication of the location where this more detailed information is available)”²⁶.

47. The Restricted Formation therefore notes that the first level of information (the panels), as observed on the day of the on-site visit, did not contain any of the aforementioned information, nor did it refer to a second-level document that would contain the missing information.

48. Furthermore, the Lycée stated during the on-site visit that information regarding video surveillance had been provided orally to students and teaching staff²⁷.

49. According to the Lycée, this information would have been provided to students by the class regents, as indicated in their administrative tasks²⁸. However, the Restricted Formation agrees with the opinion of the Chief Investigator who “believes that the excerpt of administrative tasks does not demonstrate that information in the sense of the GDPR was actually provided to the students”²⁹.

50. Regarding the information provided to teaching staff, the Lycée fails to provide evidence of any such information³⁰, having stated that there is no record of such communication³¹. In any case, a mere oral assertion by the Lycée would not have proven that the requirements of the GDPR were met³².

51. Moreover, no information appears to have been provided regarding individuals outside the Lycée (for example, parents of students) other than the students or teaching staff³³.

52. Thus, in the absence of any form of information, the Restricted Formation considers that the Lycée has failed to comply with the requirements of Articles 5.1.a), 13.1, and 13.2 of the GDPR.

53. Additionally, the Lycée does not justify that the oral provision of this information was requested by the individuals concerned, in violation of Article 12.1 of the GDPR³⁴.

54. In light of the above, the Restricted Formation aligns with the opinion of the Chief Investigator and concludes that non-compliance with Article 5.1.a) related to Articles 13.1 and 13.2 of the GDPR was established on the day of the on-site visit by the agents of the CNPD.

D. On the breach related to the principle of data minimization (Article 5.1.c) of the GDPR) and the obligation of data protection by default (Article 25.2 of the GDPR)

1. On the principles

55. Article 5.1.c) of the GDPR provides that “[p]ersonal data must be adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed (data minimization).” Recital (39) of the

29 Communication of grievances point 41.

30 Communication of grievances, point 42, Documents no. 53 and 54.

31 Communication of grievances, point 42; email from the Lycée dated December 21, 2022.

32 Communication of grievances, point 42.

33 Minutes, Observation 21.

34 Article 12.1 of the GDPR.

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The GDPR specifies that "personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means."

56.

The guidelines 3/2019 on the processing of personal data for video devices state that “[b]efore installing a video surveillance system, the data controller should always critically examine whether this measure is, on the one hand, appropriate to achieve the intended objective and, on the other hand, adequate and necessary for that purpose. Surveillance measures should only be opted for if the purpose of the processing cannot reasonably be achieved by means less likely to infringe on the

freedoms and fundamental rights of the individuals concerned.”³⁵

57.

As for the principle of data protection by default detailed in Article 25.2 of the GDPR, it imposes the adoption of measures that limit by default the processing to what is strictly necessary.

58.

In its guidelines 4/2019 relating to Article 25 of the GDPR³⁶, the EDPB specifies that “[i]n its common definition in computing, the term ‘by default’ refers to the pre-existing or pre-selected value of a configurable parameter that is assigned to a software application, computer program, or computing device. These parameters are also referred to as ‘presets’ or ‘factory settings,’ particularly for electronic devices.”³⁷

59.

The EDPB further clarifies that “the term ‘by default,’ in the context of the processing of personal data, refers to making choices regarding the configuration values or processing options defined or prescribed in a processing system, such as a software application, service, or device, or a manual processing procedure, that affect the amount of personal data collected, the extent of their processing, the duration of their retention, as well as their accessibility.”³⁸

2. In this case

60.

It should be noted that the High School has implemented a video surveillance system for access control purposes and for the protection of property in order to detect break-ins, thefts, and/or vandalism³⁹. This system operated continuously, including during the opening hours of the High School⁴⁰.

61.

During the on-site visit, the agents of the CNPD observed that the fields of vision of the INNENHOF⁴¹ and EINGANG TURNHALLE⁴² cameras included access points but also areas intended for leisure and sports⁴³, [...].

62.

The Restricted Formation agrees with the opinion of the head of the investigation in that he considered that “the living and leisure spaces of a school establishment, where students, teachers, and staff are likely to spend their break time and can move freely between class periods, such as the schoolyard, a sports field, or a cafeteria, should in principle not be subject to video surveillance measures during the opening hours of the school establishment”⁴⁴ and deemed that “the surveillance of students, teachers, and staff in areas intended for leisure and sports, [...], is in principle disproportionate in relation to the purposes pursued by the Data Controller and constitutes an excessive infringement of the private sphere of the students.”⁴⁵

63.

Thus, regarding access control, the Restricted Formation recalls that “[c]ameras intended to monitor an access point (entrance and exit, threshold, porch, door, awning, hall, etc.) must have a field of vision limited to the area strictly necessary.”

38 EDPB guidelines 4/2019 relating to Article 25, Data protection by design and data protection by default, Version 2.0, adopted on October 20, 2020, point 41.

39 Minutes of Observation 5, Observation 6; Communication of grievances, point 51, Document no. 55.

40 Minutes, Observation 9.

41 Communication of grievances, Document no. 10.

42 Communication of grievances, Document no. 09.

43 Minutes, Observation 17.

44 Communication of grievances, point 58.

45 Communication of grievances, point 59.

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to visualize individuals preparing to access it.”⁴⁶ Therefore, it notes, like the head of the investigation⁴⁷, that it was not necessary to include the living and leisure spaces of the High School in the field of view of the aforementioned cameras.

64.

Regarding the protection of property, the Restricted Formation aligns with the opinion of the head of the investigation and considers that the High School has not demonstrated why it would have been necessary to film living and leisure spaces during the opening hours of the High School.

65.

In any case, the Restricted Formation recalls that “[t]he principle of necessity implies that a data controller should only resort to a video surveillance system when there are no alternative means that are less intrusive to the privacy of the individuals concerned to achieve the intended purpose.”⁴⁸ Therefore, it believes, like the head of the investigation, that during the opening hours of the High School, the latter could have implemented alternative means, such as supervision by staff⁴⁹.

66.

Regarding the complaint under Article 25.2 of the GDPR raised by the head of the investigation in its statement of objections, the Restricted Formation is of the opinion that it does not possess sufficient technical details on the specific settings of the video surveillance system to conclude that the principle of data protection by default has not been respected as such. It follows that it is unable to establish a breach of the obligation of data protection by default under Article 25.2 of the GDPR.

67.

In light of the above, the Restricted Formation concludes that a non-compliance with Article 5.1.c) of the GDPR was established at the time of the on-site visit by the agents of the CNPD.

46 Guidelines of the CNPD on video surveillance: <https://cnpd.public.lu/content/dam/cnpd/fr/dossiers-tematiques/videosurveillance/cnpd-lignes-directrices-videosurveillance-2024.pdf>.

47 Statement of objections, point 60.

48 Guidelines of the CNPD on video surveillance: <https://cnpd.public.lu/content/dam/cnpd/fr/dossiers-tematiques/videosurveillance/cnpd-lignes-directrices-videosurveillance-2024.pdf>.

49 Statement of objections, point 61.

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E. On the breach related to the principle of data retention limitation (Article 5.1.e) of the GDPR) and the obligation of data protection by default (Article 25.2 of the GDPR)

1. On the principles

68.

According to Article 5.1.e) of the GDPR, “[p]ersonal data must be kept in a form which permits identification of the data subjects for no longer than is necessary for the purposes for which the personal data are processed.”

69.

According to Recital (39) of the GDPR, the principle of data retention limitation requires, in particular, “to ensure that the duration of data retention is limited to the strict minimum (...) In order to ensure that data is not kept longer than necessary, deadlines should be set by the data controller for their deletion

or for a periodic review.”

70.

The guidelines of the CNPD on video surveillance state that “images may be retained in principle for up to 8 days. The data controller may exceptionally retain images for a duration of 30 days. However, the reasons justifying such a retention period should be indicated in the processing register.”

71.

Regarding the principle of data protection by default, reference is made to points 57 to 59 of this decision.

2. In this case

72.

During the on-site visit, the agents of the CNPD observed that the video surveillance system was equipped with a recording function and that the oldest video recordings dated back to October 19, 2022⁵⁰. At the time of the on-site visit, the images had therefore been retained for 57 days⁵¹.

50 Minutes, Finding 19; Statement of objections, point 69, Documents no. 56 to 61.

51 Minutes, Finding 19; Statement of objections, point 69, Documents no. 56 to 61.

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73. The lycée argues that the installation sheet for the video surveillance system provided for a duration of 30 days for the retention of images. The Lycée further contends that this duration corresponds to “the maximum duration of the absence of the management members during the summer vacation. Upon the return from vacation of a management member, it would always be possible to review the incidents that occurred during our absence.”

74. The Restricted Formation agrees with the investigator in that he has determined “that a duration of 57 days is largely disproportionate given the purpose of the Processing (access control and protection of property), as a break-in or theft can be detected shortly after for a reasonably diligent data controller.”

75. Regarding the 30-day retention period, the Restricted Formation recalls that “[t]he longer the retention period set is (...), the more it is necessary to develop the reasoning justifying the legitimacy of the pursued purpose and the necessity of the retention.” It aligns with the investigator in considering that in this case, “the periods of extended school holidays” may justify the use of a longer retention period due to the absence of personnel, specifically the management members authorized to review the recordings. Indeed, the investigator believes that the specific circumstances “may justify, in this case, the retention of video recordings for a maximum duration of 30 days.”

76. Concerning the grievance under Article 25.2 of the GDPR retained by the investigator in his communication of grievances, the Restricted Formation is of the opinion that it does not possess sufficient technical details on the specific settings of the video surveillance device to conclude that the principle of data protection by default as such has not been respected. It follows that it is not in a position to find a breach of the obligation of data protection by default under Article 25.2 of the GDPR.

52 Communication of grievances, point 71, Documents no. 53 and 55.

53 Communication of grievances, point 72, Document no. 52

54 Communication of grievances, point 70.

55 Guidelines 3/2019 of the EDPS on the processing of personal data for video devices, adopted on January 29, 2020, point 121.

56 Communication of grievances, point 74, Document no. 52

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77. In light of the above, the Restricted Formation concludes that a non-compliance with Article 5.1.e) of the GDPR was established on the day of the on-site visit by the agents of the CNPD.

F. On the breach related to the security of processing (Article 32.1 of the GDPR)

1. On the principles

78. Article 32.1 of the GDPR states that "[t]aking into account the state of the knowledge, the costs of implementation, and the nature, scope, context, and purposes of the processing as well as the risks, the degree of probability and severity of which varies, for the rights and freedoms of natural persons, the data controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk (...)" and in particular "means to restore the availability of personal data and access to it within appropriate timeframes in the event of a physical or technical incident" and "a procedure to regularly test, analyze, and evaluate the effectiveness of the technical and organizational measures to ensure the security of processing."

79. Article 32.2 of the GDPR states that "[i]n assessing the appropriate level of security, particular account shall be taken of the risks presented by the processing, resulting in particular from the destruction, loss, alteration, unauthorized disclosure of personal data transmitted, stored, or otherwise processed, or from unauthorized access to such data, whether accidental or unlawful."

80. The EDPS in its aforementioned guidelines 3/2019 specifies that "[a]ccess control ensures that only authorized persons can access the system and the data (...)." The CNPD's guidelines on video surveillance state that "access to the data must be secured (for example, through a strong password and an identifier) and each person with access to the data must have an individual access account. An access log must also be available, so that it is possible to trace the individuals who have accessed the data."

57 Guidelines 3/2019 of the EDPS on the processing of personal data for video devices, adopted on January 29, 2020, point 135.

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accessed the data, as well as the data that was consulted by these individuals, in case of abuse."58

2. In this case

81. It emerges from the first on-site visit that the images captured by the video surveillance system could be viewed in real-time by the six members of the technical team of the Lycée from the computers installed in booths A and B59. The members of the technical team therefore only had access to the images in real-time60. Only the principal and the deputy principal of the Lycée had access to the recorded images via an individual user account61.

82. Furthermore, each member of the technical team had individual access to the computer but accessed the video surveillance system's operating software via a shared account62. Indeed, the lead investigator noted that access to the operating software of the video surveillance system "is secured by a common username and password shared among the six members of the technical team, who thus use a single user account"63.

83. Moreover, the agents of the CNPD observed during the on-site visit that access to booths A and B is physically secured by a locked door, as well as by a door secured by an access badge system64.

84. Finally, during the on-site visit, the Lycée stated that no traceability of access to the operating software of the video surveillance system was possible65.

85. Like the lead investigator, the Restricted Formation believes that access to a video surveillance system via software should, in principle, be secured through individual user accounts that allow for

proper traceability of access and actions on the system, such as, for example, the deletion or modification of video recordings. Furthermore, a password, in accordance with basic rules regarding information system security, must, to be effective, remain secret and individual. This rule is not respected in the case of a shared account.

86. Consequently, the Restricted Formation holds that in order to comply with the requirements of Article 32.1 of the GDPR, the Lycée must implement a logging system for access and events, as well as a periodic review of log files to detect any anomalies and ensure that the members of the technical team of the Lycée authorized to access the video surveillance system each have an individual account with a unique password in order to access the operating software of said system.

87. In light of the above, the Restricted Formation concludes that non-compliance with Article 32.1 was established on the day of the on-site visit by the agents of the CNPD.

II.2. On the administrative fine and corrective measures

1. On the principles

88. In accordance with Article 12 of the law of August 1, 2018, the National Commission has the powers provided for in Article 58.2 of the GDPR:

- “a) warn a data controller or a processor that the intended processing operations are likely to violate the provisions of this regulation;
- b) reprimand a data controller or a processor when the processing operations have resulted in a violation of the provisions of this regulation;
- c) order the data controller or the processor to comply with requests made by the data subject in order to exercise their rights under this regulation;
- d) order the data controller or the processor to bring the processing operations into compliance with the provisions of this regulation, where appropriate, specifically and within a specified timeframe;

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- e) order the data controller to communicate to the data subject a personal data breach;
- f) impose a temporary or permanent limitation, including a prohibition, on processing;
- g) order the rectification or erasure of personal data or the limitation of processing in accordance with Articles 16, 17, and 18 and the notification of these measures to the recipients to whom the personal data have been disclosed in accordance with Article 17, paragraph 2, and Article 19;
- h) withdraw a certification or order the certification body to withdraw a certification issued under Articles 42 and 43, or order the certification body not to issue a certification if the applicable certification requirements are not or are no longer met;
- i) impose an administrative fine in accordance with Article 83, in addition to or in place of the measures referred to in this paragraph, depending on the specific characteristics of each case;
- j) order the suspension of data flows addressed to a recipient located in a third country or to an international organization.

89.

In accordance with Article 48 of the law of August 1, 2018, the CNPD may impose

administrative fines as provided for in Article 83 of the GDPR, except against the State or municipalities.

90.

The Restricted Formation wishes to clarify that the facts taken into account in the context of this decision are those established at the beginning of the investigation. Any subsequent changes related to the data processing subject to the investigation, even if they allow for full or partial compliance to be established, do not retroactively annul a determined breach.

91.

Nevertheless, the steps taken by the controlled entity to comply with the GDPR during the investigation procedure or to remedy the breaches identified by the investigator in the communication of grievances are taken into account by the Restricted Formation in the context of any corrective measures to be imposed.

66 Cf. Adm. Trib., May 14, 2024, no. 46401 of the roll, page 27, paragraphs 1 and 2.

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2. In this case

92.

In the communication of grievances, the investigator proposed to the Restricted Formation to adopt the following corrective measures within "a period of 3 months from the notification of the decision" made by the Restricted Formation at the High School:

- a) "remind the Data Controller of their obligations, in the sense of Article 58.2 b) of the GDPR, regarding their obligation to respect the principle of accountability arising from Article 5.2 of the GDPR";
- b) "order the compliance of the Processing, in the sense of Article 58.2 d) of the GDPR, regarding the violation of the principle obligation to inform the data subjects arising from Article 5.1 a) of the GDPR in conjunction with Articles 13.1 and 13.2 of the GDPR";
- c) "order the compliance of the Processing, in the sense of Article 58.2 d) of the GDPR, regarding the violation of the obligation to minimize the data processed in relation to the purpose pursued arising from Article 25.2 of the GDPR";
- d) "order the compliance of the Processing, in the sense of Article 58.2 d) of the GDPR, regarding the violation of the obligation to limit the retention of data arising from Article 25.2 of the GDPR";
- e) "order the compliance of the Processing, in the sense of Article 58.2 d) of the GDPR, regarding the violation of the obligation to implement appropriate technical and organizational measures arising from Article 32.1 of the GDPR."

93.

Regarding the qualification proposed by the investigator mentioned under a) of point 92 of this decision, the Restricted Formation considers, in light of the preceding developments, that the violation of Article 5.2 of the GDPR is established and that it is therefore appropriate to uphold the breach as proposed by the investigator in this regard and reiterated in point 92 of this decision under a).

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94. Regarding the corrective measure proposed by the head of the investigation referred to under b) of point 92 of this decision, the Restricted Formation considers that the contested processing operation has resulted in a breach of the GDPR, and it is necessary to impose the corrective measure proposed by the head of the investigation in this regard, as reiterated in point 92 of this decision under b).

95. Regarding the corrective measure proposed by the head of the investigation referred to under c) of point 92 of this decision, the Restricted Formation considers, in light of the preceding developments, that the violation of Article 5.1.c) of the GDPR is established, and therefore it is necessary to acknowledge the breach as proposed by the head of the investigation in this regard and reiterated in point 92 of this decision under c).

96. Regarding the corrective measure proposed by the head of the investigation referred to under d) of point 92 of this decision, the Restricted Formation considers that the breach of Article 5.1.e) of the GDPR is established, and it is necessary to impose the corrective measure proposed by the head of the investigation in this regard and reiterated in point 92 of this decision under d).

97. Regarding the corrective measure proposed by the head of the investigation referred to under e) of point 92 of this decision, the Restricted Formation considers that the breach of Article 32.1 of the GDPR is established, and it is necessary to impose the corrective measure proposed by the head of the investigation in this regard and reiterated in point 92 of this decision under e).

In light of the preceding developments, the National Commission sitting in a restricted formation, after deliberation, decides:

- to acknowledge the breaches of Articles 5.2, 5.1.a) related to Articles 13.1 and 13.2, 5.1.c), 5.1.e), and 32.1 of the GDPR;
- to issue a reprimand against the Lycée regarding the breaches of Articles 5.2, 5.1.a) related to Articles 13.1 and 13.2, 5.1.c), 5.1.e), and 32.1 of the GDPR;
- to issue an injunction against the Lycée to bring its processing into compliance with the provisions of Articles 13.1 and 2 of the GDPR, within a period of 3 (three) months following the notification of the decision of the Restricted Formation, and, in particular:
 - to inform the data subjects clearly and precisely about the video surveillance system, either by providing them with information in a single location or in the same document (in paper or electronic format) about all the elements required under Article 13 of the GDPR, or by proceeding with a first and second level of information by:
 - o adapting the existing signs so that they include the identity and contact details of the data controller; the purpose(s) of the processing; the existence of the rights available to the data subjects; the mention that more comprehensive information exists (second level of information) and the means to access it (for example, a hyperlink directing to the website of the data controller, the use of a QR code, a phone number to call, or the indication of the location where this more detailed information is available);
 - o providing a second level of information so that the information is addressed to the data subjects "in a concise, transparent, comprehensible, and easily accessible manner, using clear and plain language" and that it contains all the information as defined in Article 13 of the GDPR;
- to issue an injunction against the Lycée to bring its processing into compliance with Article 5.1.c) of the GDPR, within a period of 3 (three) months following the notification of the decision of the Restricted Formation, and, in particular:
 - to limit the field of view of the INNENHOF camera to the area strictly necessary to visualize the individuals preparing to access the entrances of the Lycée filmed by said camera;
 - to limit the field of view of the EINGANG TURNHALLE camera to the area strictly necessary to visualize the individuals preparing to access the entrances of the Lycée filmed by said camera;
- to issue an injunction against the Lycée to bring its processing into compliance with Article 5.1.e) of the GDPR, within a period of 3 (three) months following the notification of the decision of the Restricted Formation, and, in particular, to limit the retention period of video surveillance images to a maximum duration of 30 days and to permanently delete any recordings exceeding the aforementioned retention

period;

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to issue an injunction against the High School to bring its processing into compliance with Article 32.1 of the GDPR, within a period of 3 (three) months following the notification of the decision of the Restricted Formation, and, in particular, to implement a logging system for access and events, as well as a periodic review of log files to detect any anomalies and ensure that the members of the technical team of the High School who have been authorized to access the video surveillance system each have an individual account with a unique password to access the operating software of said system.

Belvaux, March 26, 2025.

The National Commission for Data Protection sitting in a restricted formation

Tine A. Larsen

Marc Lemmer

Marc Hemmerling

President

Commissioner

Alternate Member

Indication of remedies

This administrative decision may be subject to an appeal for reform within three months following its notification. This appeal must be brought before the administrative court and must necessarily be introduced through a lawyer at the Court of one of the Bar Associations.